Consider and Adopt Revisions to Board Policy DBD (Local)

Proposal:
That the Board of Trustees consider and adopt revisions to Local Board Policy DBD Employment Requirements and Restrictions: Conflict of Interest

Explanation:
The Administration recommends consideration and adoption of the revisions to Board Policy DBD Employment Requirements and Restrictions: Conflict of Interest. The Administration recommends that the updated Local Board Policy DBD (Local) be adopted as presented.

Policy Reference: DBD Local

Recommended by:

Dr. David Vinson
Superintendent of Schools

Conroe ISD (conroe-isd)

Employment Requirements and Restrictions: Conflict of Interest (DBD)

Policy Type: Local Policy

Date Issued: 2016-01-26

Version: 1

Note: For conflicts of interest and gifts and gratuities related to federal grants and awards, see CB and CBB.

Disclosure—General Standard

An employee shall disclose to his or her immediate supervisor a personal financial interest, a business interest, or any other obligation or relationship that in any way creates a potential conflict of interest with the proper discharge of assigned duties and responsibilities or with the best interest of the District.

Specific Disclosures

Substantial Interest

The Superintendent shall file an affidavit with the Board President disclosing a substantial interest, as defined by Local Government Code 171.002, in any business or real property that the Superintendent or any of his or her relatives in the first degree may have.

Any other employee who is in a position to affect a financial decision involving any business entity or real property in which the employee has a substantial interest, as defined by Local Government Code 171.002, shall file an affidavit with the Superintendent; however, the employee shall not be required to file an affidavit for the substantial interest of a relative.

Interest In Property

The Superintendent shall be required to file an affidavit disclosing interest in property in accordance with Government Code 553.002.

Annual Financial Management Report

The Superintendent, as the executive officer of the District, shall provide to the District in a timely manner information necessary for the District's annual financial management report.

[See BBFA]

Gifts

An employee shall not accept or solicit any gift, favor, service, or other benefit with a value of $50 or more from a vendor or other individual associated with the District, such as a student or parent, that could reasonably be construed to influence the employee's discharge of assigned duties and responsibilities. [See CAA, CB, and CBB]

Endorsements

An employee shall not recommend, endorse, or require students to purchase any product, material, or service in which the employee has a financial interest or that is sold by a company that employs or retains the District employee during non-school hours. No employee shall require students to purchase a specific brand of school supplies if other brands are equal and suitable for the intended instructional purpose.

Sales

An employee shall not use his or her position with the District to attempt to sell products or services.

Non-school Employment

An employee shall disclose in writing to his or her immediate supervisor any outside employment that in any way creates a potential conflict of interest with the proper discharge of assigned duties and responsibilities or with the best interest of the District.

Private Tutoring

An employee shall disclose in writing to his or her immediate supervisor any private tutoring of District students for pay.

Administrator Financial Benefit

Definition

For this section, an administrator means a person who has significant administrative duties relating to the operation of the District, including the operation of a campus, program, or other subdivision of the District.

The definition of administrator does not include:

1. A school district employee whose employment contract responsibilities primarily include the in-classroom instruction of students; or
2. A Board of Trustees member.

Financial Benefit

Except as provided by this policy, an administrator may not receive any financial benefit for the performance of personal services for:

1. Any business entity that conducts or solicits business with the District;
2. An education business that provides services regarding the curriculum or administration of any school district; or
3. Another school district, open-enrollment charter school, or regional education service center.

An administrator, other than a member of a Board of Trustees, superintendent, or assistant superintendent, may receive a financial benefit for the performance of personal services for (2) or (3) only if:

1. A written contract describing the services to be performed by the administrator is provided to the Board; and
2. The Board votes to approve the contract after determining that:
   a. The contract will not harm the District;
   b. The arrangement does not present a conflict of interest; and
   c. The services to be performed will be performed entirely on the administrator's personal time.

A contract provided to a Board under these conditions shall be subject to public disclosure.

An administrator who violates these terms may be liable to the state for a civil penalty in the amount of $10,000 for each violation.

The District shall adopt procedures to implement this policy.

DATE ISSUED: ~~2016-01-26~~

UPDATE: ~~1~~

DBD (Local Policy)

LOCAL POLICY: DBD

Amended Board Policy:

Administrator Financial Benefit

Definition

For this section, an administrator means a person who has significant administrative duties relating to the operation of the District, including the operation of a campus, program, or other subdivision of the District.

The definition of administrator does not include:

1. A school district employee whose employment contract responsibilities primarily include the in-classroom instruction of students; or
2. A Board of Trustees member.

Financial Benefit

Except as provided by this policy, an administrator may not receive any financial benefit for the performance of personal services for:

1. Any business entity that conducts or solicits business with the District;
2. An education business that provides services regarding the curriculum or administration of any school district; or

Legislative Basis for the Policy Change

Origins of the Code Revisions: House Bill 3372

Texas Education Code § 11.006. PROHIBITED ACTIVITIES BY ADMINISTRATORS.
(a) In this section, "administrator" means a person who has significant administrative duties relating to the operation of a school district, including the operation of a campus, program, or other subdivision of the district. The term does not include:
(1) a school district employee whose employment contract responsibilities primarily include the in-classroom instruction of students; or
(2) a trustee of a school district.
(b) An administrator may not receive any financial benefit for the performance of personal services for:
(1) any business entity that conducts or solicits business with the school district that employs the administrator;
(2) except as provided by Subsection (c), an education business that provides services regarding the curriculum or administration of any school district; or
(3) except as provided by Subsection (c), another school district, open-enrollment charter school, or regional education service center.
(c) An administrator, other than a member of a board of managers, superintendent, or assistant superintendent, may receive a financial benefit under Subsection (b)(2) or (3) if:

3. Another school district, open-enrollment charter school, or regional education service center. An administrator, other than a member of a Board of Trustees, superintendent, or assistant superintendent, may receive a financial benefit for the performance of personal services for (2) or (3) only if: 1. A written contract describing the services to be performed by the administrator is provided to the Board; and 2. The Board votes to approve the contract after determining that: a. The contract will not harm the District; b. The arrangement does not present a conflict of interest; and c. The services to be performed will be performed entirely on the administrator's personal time. A contract provided to a Board under these conditions shall be subject to public disclosure. An administrator who violates these terms may be liable to the state for a civil penalty in the amount of $10,000 for each violation. The District shall adopt procedures to implement this policy.	(1) a written contract describing the services to be performed by the administrator is provided to the board of trustees of the administrator's employing district; and (2) the board of trustees for the administrator's employing district votes to approve the contract after determining that: (A) the contract will not harm the district; (B) the arrangement does not present a conflict of interest; and (C) the services to be performed by the administrator will be performed entirely on the administrator's personal time. (d) A contract provided to a board of trustees under Subsection (c) is subject to disclosure under Chapter 552, Government Code. (e) An administrator who violates this section is liable to the state for a civil penalty in the amount of $10,000 for each violation.

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